

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Order Granting Stay of Mandate

Stay granted

Entered July 6, 2026.

The court grants Blue Cedar Compliance, Inc.'s July 2 motion to stay mandate pending preparation of a petition for a writ of certiorari. The proposed petition concerns whether the admitted circumstantial record permits a reasonable finding of but-for retaliation at the final stage of the Title VII framework. It does not challenge this court's affirmance of the narrow exclusion of Tessa Wynn's late declaration.

For purposes of the requested interim relief, the court finds that Blue Cedar has presented a substantial question, a sufficient possibility of review and a different disposition, and good cause to preserve the present posture for a bounded period. Mandate is STAYED as of July 6. The stay does not alter the June 15 opinion or judgment, grant rehearing, or express a final view on the proposed certiorari question. No mandate may issue while this order remains effective unless the court first releases it.

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Duration and notice conditions

The ninetieth day after entry is Sunday, October 4, 2026, so Rule 26 carries the expiration through Monday, October 5, unless Blue Cedar timely files a certiorari petition, obtains an extension for good cause, or the court orders earlier release. If a petition is filed during the stay, mandate will remain stayed as provided by Federal Rule of Appellate Procedure 41 pending the Supreme Court's final disposition. If certiorari is denied, Blue Cedar abandons the proposed petition, or the asserted basis otherwise ends, counsel must notify the clerk immediately.

Because the mandate concerns further district-court proceedings rather than enforcement of a money judgment, no bond is required on the present showing. The clerk shall serve this order on counsel and monitor the stated conditions. A later issuance requires an order or docket event releasing the stay; passage of the original July 8 date alone is insufficient. The district court shall be notified that appellate mandate remains withheld during the effective stay.